

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

MOISES FONTANEZ-BATISTA,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer
GARRY J. TUMA, Shield No. 20648;
Sergeant FRANK A. ALIFFI, Tax No.
939856 and JOHN and JANE DOE 1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Bronx County as
place of venue

SUMMONS

The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: August 21, 2020

New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

Gabriel P.

By: **Harvis**

Digitally signed by Gabriel P.
Harvis
Date: 2020.08.21 14:18:55
-04'00'

Gabriel P. Harvis, Esq.,

Attorneys for the Plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendants:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

Police Officer Garry J. Tuma, Shield No. 20648;

100 Church Street

New York, NY 10007

Sergeant Frank A. Aliffi, Tax No. 939856

100 Church Street

New York, NY 10007

Failure to respond, a judgment will be against you, by default and interest from May 27, 2019.

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

MOISES FONTANEZ-BATISTA,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer GARRY J.
TUMA, Shield No. 20648; Sergeant FRANK A.
ALIFFI, Tax No. 939856 and JOHN and JANE DOE
1-10,

Defendants.

Index No.:

Date Purchased:

VERIFIED
COMPLAINT

Plaintiff MOISES FONTANEZ-BATISTA, by his attorneys, ELEFTERAKIS,
ELEFTERAKIS & PANEK, complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
3. Jurisdiction is conferred by 42 U.S.C. § 1983 and the laws of the State of New York.
4. On or about August 14, 2019, and within ninety (90) days after the claim arose, plaintiff served, presented, and filed a duly sworn Notice of Claim, in writing, upon

defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.
5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claim.
6. The City of New York examined plaintiff pursuant to G.M.L. § 50-h on or about January 10, 2020.
7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

8. Plaintiff MOISES FONTANEZ-BATISTA is a resident of the State of New York.
9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the

appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, senior officials in the NYPD are aware of and tolerate certain practices by subordinate employees in criminal investigations, regardless of whether they are acting according to written policy. These practices, which are wide-spread, long-tolerated and uncorrected are deeply embedded in the NYPD culture and therefore constitute unwritten policies or customs. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. Defendants Police Officer GARRY J. TUMA, Shield No. 20648 and Sergeant FRANK A. ALIFFI were, at all relevant times, employees of the NYPD. In their interactions with plaintiff these defendants were acting in the capacity of agent, servant and employee of defendant City of New York and acted within the scope of their employment and under color of state law. On information and belief, these defendants participated in the misconduct at issue in this case, including the use of excessive force against and the assault and battery of plaintiff. Defendants TUMA and ALIFFI are sued in his individual capacity.

11. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the use of force against plaintiff and the violations of his rights. John and Jane Doe 1-10 are sued in their individual capacities.

12. At all times here mentioned, the individual defendants were acting under color of state law.

STATEMENT OF FACTS

13. On or about May 27, 2019, at approximately 7:30 p.m., plaintiff was lawfully in the area of 153 Father Zeiser Place in Bronx, New York when he observed his friend, Olbeney, surrounded by defendant officers.

14. When plaintiff, from a safe and reasonable distance, asked defendants why they were surrounding Olbeney, defendants turned their attention to plaintiff.

15. Defendants aggressively approached and pushed plaintiff for no lawful reason, causing him to slam on the ground and sustain serious injuries.

16. Defendants then piled on top of plaintiff, handcuffed him and arrested him.

17. Mr. FONTANEZ-BATISTA was taken to the 52nd Precinct.

18. At the Precinct defendants falsely informed employees of the Bronx County District Attorney's Office that plaintiff had committed multiple crimes, including assault on an officer, a felony, and prepared false paperwork to that effect, including an arrest report.

19. After several hours and in significant pain, plaintiff was finally transported to Central Booking.

20. From Central Booking, plaintiff was taken to Lincoln Hospital for treatment.

21. Upon information and belief, prosecutors found no basis to charge plaintiff with felony assault and declined to prosecute him for this offense.

22. Mr. FONTANEZ-BATISTA was eventually arraigned was given an adjournment in contemplation of dismissal. All charges were later dismissed and sealed.

23. Mr. FONTANEZ-BATISTA sustained serious injuries as a result of defendants' conduct, including to his back, neck, hip and knees.

24. Plaintiff will require continued medical treatment for his significant injuries.

25. Mr. FONTANEZ-BATISTA further suffered emotional distress, mental anguish, fear, pain, permanent bodily injury, anxiety, embarrassment and humiliation.

FIRST CLAIM

State Law Assault and Battery

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

27. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

28. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

29. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SECOND CLAIM

§ 1983 Unreasonable Force; Supervisory Liability

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. The individual defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

32. The supervisory defendants are liable for the use of excessive force.

33. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

Negligence; Negligent Hiring/Training/Retention

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

36. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

37. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

38. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

42. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

43. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM
Failure to Intervene

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

47. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

48. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM**Punitive Damages & Attorney's Fees**

49. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

50. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

51. Accordingly, plaintiff is entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff, MOISES FONTANEZ-BATISTA, demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: August 21, 2020
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

Gabriel P.

By: **Harvis**

Digitally signed by Gabriel
P. Harvis
Date: 2020.08.21 14:20:40
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Gabriel P. Harvis, Esq.

Attorneys for plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(P)(212) 532-1116

(F)(212) 532-1176

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
August 21, 2020

**Gabriel P.
Harvis**

Digitally signed by Gabriel
P. Harvis
Date: 2020.08.21 14:21:04
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Gabriel P. Harvis, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

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Plaintiff,

-against-

CITY OF NEW YORK; Police Officer GARRY J. TUMA, Shield No. 20648;
Sergeant FRANK A. ALIFFI, Tax No. 939856 and JOHN and JANE DOE 1-10,

Defendants.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005
212.532.1116

Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

GABRIEL P. HARVIS, ESQ., the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
August 21, 2020

**Gabriel P.
Harvis**

 Digitally signed by Gabriel
P. Harvis
Date: 2020.08.21 14:22:25
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Gabriel P. Harvis, Esq.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of the within Entry named Court on

- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. one of the Judges of the Settlement within named Court, on , at

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005